

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/22/26 TIME: 1:30 P.M. DEPT: A CASE NO: CV0005353

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK:

PLAINTIFF: OPTIMAL PARTNERS, A
CALIFORNIA GENERAL PARTNERSHIP

vs.

DEFENDANT: SAMIA MANAGHEBI ET
AL.

NATURE OF PROCEEDINGS: 1) MOTION – JUDGMENT ON THE PLEADINGS
2) ORDER – SHOW CAUSE – FAILURE TO APPEAR

RULING

Defendants’ motion for judgment on the pleadings is **GRANTED** without leave to amend.

Allegations in Plaintiff’s Complaint

Plaintiff Optimal Partners alleges that Defendants Samia Managhebi and Brandon Adlesh submitted a higher bid at the trustee’s sale for the property located at 165 Grove Road, Bolinas, California by falsely representing themselves as “eligible bidders” and “prospective owner-occupants” under Civil Code Section 2924m, when they had no intent to occupy the property as their principal residence. Defendants’ bid interfered with Plaintiff’s acquisition of the property as the initial high bidder, rendering the subsequent trustee’s deed to Defendants void or voidable. The Complaint asserts causes of action for intentional interference with prospective economic advantage, negligent interference with prospective economic relations, violation of Civil Code Sections 2924g, 2924h, and/or 2924m, cancellation of instruments, declaratory relief, quiet title, and unfair business practices.

Procedural Deficiencies

The Court draws Defendants’ attention to Local Rule 2.8(C)2, which requires attachment of the operative pleading as an exhibit to the motion for judgment on the pleadings.

Standard

“A motion for judgment on the pleadings performs the same function as a general demurrer . . . It is axiomatic that a demurrer lies only for defects appearing on the face of the pleadings. Consequently, when considering a motion for judgment on the pleadings, [a]ll facts alleged in the complaint are deemed admitted . . . Presentation of extrinsic evidence is therefore not proper on a motion for judgment on the pleadings.” (*Sykora v. State Dept. of State Hospitals* (2014) 225 Cal.App.4th 1530, 1535 [citations and internal quotations omitted].) A motion for judgment on the pleadings must be denied where there are material factual issues that require evidentiary resolution. (*Schabarum v. California Legislature* (1998) 60 Cal.App.4th 1205, 1216.)

Discussion

Defendants move for judgment on the pleadings as to all of the causes of action in the Complaint on the ground that Civil Code Section 2924m does not provide a private cause of action and all of Plaintiff’s claims are based either directly based on this statute or are derivative of this statute.

Third Cause of Action: Violation of Civil Code §§ 2924g, h, and/or m

Defendants argue that Section 2924m does not provide or create a private right of action. The enforcement provision for this statute is found in Section 2924m(j) and does not mention private causes of action. Rather, this section provides: “The Attorney General, a county counsel, a city attorney, or a district attorney may bring an action for specific performance or any other remedy at equity or at law to enforce this section.”

“A violation of a state statute does not necessarily give rise to a private cause of action. Instead, whether a party has a right to sue depends on whether the Legislature has ‘manifested an intent to create such a private cause of action’ under the statute. Such legislative intent, if any, is revealed through the language of the statute and its legislative history. A statute may contain ‘clear, understandable, unmistakable terms,’ which strongly and directly indicate that the Legislature intended to create a private cause of action. For instance, the statute may expressly state that a person has or is liable for a cause of action for a particular violation. Or, more commonly, a statute may refer to a remedy or means of enforcing its substantive provisions, i.e., by way of an action. [FN] If, however, a statute does not contain such obvious language, resort to its legislative history is next in order.” (*Lu v. Hawaiian Gardens Casino, Inc.* (2010) 50 Cal.4th 592, 596-597 [citations omitted].)

Nothing in Section 2924m indicates that the Legislature intended to allow unsuccessful bidders to sue successful bidders for false representations to the trustee. The statute does not

contain clear, understandable, unmistakable terms which strongly indicate the Legislature intended to create a cause of action beyond the persons specifically identified in this section. Although the Legislature could have included language allowing for a private cause of action by an unsuccessful bidder or otherwise, it did not do so. Further, Plaintiff presents no legislative history showing that the Legislature intended to create a private cause of action for claims similar to the ones it attempts to assert in this case. (See *Moradi-Shalal v. Fireman's Fund Ins. Cos.* (1988) 46 Cal.3d 287, 300.)¹

While the Third Cause of Action also references Sections 2924g and 2924h, Plaintiff does not dispute that the cause of action in its entirety is based upon, and/or is derivative of, the Section 2924m claim. Accordingly, the Court sustains grants the motion as to the Third Cause of Action.

Remaining Causes of Action

First and Second Causes of Action

Defendants argue that their motion as to the First Cause of Action for intentional interference with prospective economic relations and the Second Cause of Action for negligent interference with prospective economic relations should be granted because the existence of a Section 2924m scheme is the *sine qua non* of these claims and Plaintiff cannot state a Section 2924m cause of action.

To state a cause of action for interference with prospective economic relations, a plaintiff must allege an independently wrongful act. (See *Della Penna v. Toyota Motor Sales, USA, Inc.* (1995) 11 Cal.4th 376, 393.) “[A]n act is independently wrongful if it is unlawful, that is, if it is proscribed by some constitutional, statutory, regulatory, common law, or other determinable legal standard.” (See *Korea Supply Co. v. Lockheed Martin Corp.* (2003) 29 Cal.4th 1134, 1159.) Defendants argue that the independently wrongful act here is the alleged violation of Section 2924m, and Plaintiff cannot bring a private cause of action for violation of this section. Plaintiff argues that the independently wrongful act was Defendants’ fraud and perjury, which do not have to be independently actionable by Plaintiff. Plaintiff’s position is supported by the California Supreme Court’s decision in *Korea Supply*, in which the court stated that it “found no sound reason for requiring that a defendant’s wrongful actions must be directed towards the plaintiff seeking recovery for this tort. The interfering party is liable to the interfered-with party ‘when the independently tortious means the interfering party uses are independently tortious *only*’

¹ In *Optimal Partners v. Brian Mitchell, Mortgage Lender Services, Inc. dba Sunrise Assessment Services, all persons claiming an interest in the subject property*, Case No. CV0003795, the Hon. Judge Sheila Lichtblau sustained a demurrer on the ground that Section 2924m does not provide for a private cause of action. This Court finds Judge Lichtblau’s reasoning persuasive and adopts it here.

as to a third party. Even under these circumstances, the interfered-with party remains an intended (or at least known) victim of the interfering party – albeit one that is indirect rather than direct.” (*Id.* at p. 1163 [citation omitted] [emphasis in original].) Thus, the alleged perjury and fraud do not need to be independently wrongful as to Plaintiff. (See *Crown Imports, LLC v. Superior Court* (2014) 223 Cal.App.4th 1395, 1405 [“The question has arisen as to whether, in order to be actionable as interference with prospective economic advantage, the interfering act must be independently wrongful *as to the plaintiff*. It need not be”] [emphasis in original].)

However, Plaintiff fails to sufficiently allege an economic relationship that contained the probability of future economic benefit to Plaintiff. “Intentional interference with prospective economic advantage has five elements: (1) the existence, between the plaintiff and some third party, of an economic relationship that contains the probability of future economic benefit to the plaintiff; (2) the defendant’s knowledge of the relationship; (3) intentionally wrongful acts designed to disrupt the relationship; (4) actual disruption of the relationship; and (5) economic harm proximately caused by the defendant’s action.” (*Roy Allan Slurry Seal, Inc. v. American Asphalt South, Inc.* (2017) 2 Cal.5th 505, 512.) In *Roy Allan* – a case raised by Plaintiff in its Opposition – the court held that the second lowest bidder on a public contract could not bring an interference claim because the that bidder alleged only a “hope” for an economic relationship with the public entity. (*Id.* at p. 510.) While *Roy Allan* involved bids on a public works contract, the same rationale applies here. Plaintiff, which alleges it was the highest bidder at the trustee’s sale, did not have any actual relationship with the trustee and at most had a “hope” for an economic relationship. A subsequent higher bid or intent to bid from a qualified eligible bidder could have trumped Plaintiff’s bid under Civil Code Section 2924m(c).²

The motion for judgment on the pleadings as to these two causes of action is sustained.

Fourth and Sixth Cause of Action

Defendants argue that their motion as to the Fourth Cause of Action for cancellation of instruments and the Sixth Cause of Action to quiet title should be granted because they are dependent upon Defendants’ invocation of the rights established in Civil Code 2924m.

The motion is granted as to these two causes of action. Defendants’ argument is that these causes of action are premised on an alleged violation of Section 2924m, for which Plaintiff does not have standing to sue. The Court reaches the same result but with an analysis is more focused on traditional standing principles.

² Plaintiff acknowledges this fact in its Opposition, stating that the trustee was obligated to convey to Plaintiff “unless a qualifying bidder timely and validly overbid.” (Opp., p. 10:13.)

Plaintiff has not alleged facts showing it has standing to cancel or void the trustee's deed because it does not allege an ownership interest in the property. "A written instrument, in respect to which there is a reasonable apprehension that if left outstanding it may cause serious injury to a person against whom it is void or voidable, may, upon his application, be so adjudged, and ordered to be delivered up or canceled." (Civ. Code § 3412.) To have standing to bring a claim for cancellation of instruments, the plaintiff must allege the instrument is void or voidable against the plaintiff. (*Saterbak v. JPMorgan Chase Bank, NA* (2016) 245 Cal.App.4th 808, 818-819.) Plaintiff does not allege this. Rather, Plaintiff alleges the instrument is void or voidable against Defendants because it was obtained by Defendants' perjury or fraud. Further, Plaintiff does not allege an actual, concrete interest in the property. "One without any title or interest in the property cannot maintain such an action." (*Osborne v. Abels* (1939) 30 Cal.App.2d 729, 731; see *Miller and Starr, Cal. Real Est. § 40:113* (4th ed.) ["A person who does not have an interest in a parcel of real property cannot bring an action to cancel a deed or mortgage regarding the property. [FN] To bring such an action, the plaintiff must have an interest in the parcel affected by the instrument"].)

While Plaintiff alleges it was the highest bidder at the trustee's sale, its interest in the property is speculative. The rationale of *Roy Allan* applies here as well. Plaintiff did not have any actual interest in the property and at most had a "hope" for an interest because the trustee could have conveyed the property to a qualifying eligible bidder notwithstanding the fact that Plaintiff had the highest bid at the trustee's sale. There was no certainty Plaintiff would have acquired the property.

For the same reason, Plaintiff does not allege facts showing it has standing to bring a quiet title claim. "[A]bsent an interest in the property, a party has no standing to ask the court to quiet title in the property or to obtain damages for the cloud on title." (*Chao Fu, Inc. v. Chen* (2012) 206 Cal.App.4th 48, 59.) Plaintiff had a "hope" for an interest in the property only and therefore cannot bring a claim to quiet title to the property,

The motion is granted as to these two causes of action.

Fifth Cause of Action: Declaratory Relief

Plaintiff's declaratory relief cause of action is wholly derivative of its other claims. The Court grants the motion as to the Fifth Cause of Action on this basis. (See *City of Lancaster v. Netflix, Inc.* (2024) 99 Cal.App.5th 1093, 1114 ["a declaratory relief claim is subject to general demurrer where it relates to a substantive claim that is invalid as a matter of law"]; *Lauckhart v. El Macero Homeowners Assn.* (2023) 92 Cal.App.5th 889, 909; *Ball v. FleetBoston Financial Corp.* (2008) 164 Cal.App.4th 794, 800.)

Seventh Cause of Action: Unfair Business Practices

Plaintiff's Section 17200 cause of action is derivative of its other claims. As the Court grants the motion as to the other causes of action, the motion for judgment on the pleadings of the Seventh Cause of Action is granted as well. (See *Aleksick v. 7-Eleven, Inc.* (2012) 205 Cal.App.4th 1176, 1185.)

Leave to Amend

Unless Plaintiff can identify at the hearing a reasonable possibility that it can state a good cause of action, Defendants' motion for judgment on the pleadings is granted without leave to amend. (See *Lowry v. Port San Luis Harbor Dist.* (2020) 56 Cal.App.5th 211, 221.)

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for September, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1605267272?pwd=908CbP6TV2mhCAyailnzo6lyz2dKaw.1>

Meeting ID: 160 526 7272

Passcode: 026935

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/22/26 TIME: 1:30 P.M. DEPT: A CASE NO. CV0007933

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK:

PLAINTIFF: WELLS FARGO BANK, N.A.	
vs.	
DEFENDANT: EUAN MACDONALD, AN INDIVIDUAL	

NATURE OF PROCEEDINGS: MOTION – SUMMARY JUDGMENT

RULING

The unopposed motion for summary judgment by plaintiff Wells Fargo Bank, N.A. (“Plaintiff”) is **GRANTED**. (Code Civ. Proc., § 437c, subds. (c) and (p)(1).) Plaintiff has met its burden showing no triable issues of material fact exist as to any of the alleged causes of action.

Facts

Plaintiff filed this action on October 20, 2025, against defendant Euan MacDonald (“Defendant”) alleging causes of action for breach of contract and implied breach of contract. Defendant filed an answer on December 19, 2025.

Defendant applied to Plaintiff for a credit card account and entered into a written agreement with Plaintiff to be bound by the terms and conditions set forth in the Customer Agreement (“Agreement”), including that use of the issued card constituted acceptance of the Agreement. (Plaintiff’s Separate Statement of Undisputed Material Facts (“SS”) Nos. 1-3.)¹ Pursuant to the terms of the Agreement, Plaintiff would extend credit to Defendant whereby Defendant could use the credit card, making charges and Defendant would make payments plus any interest incurred and finance charges. (SS Nos. 4-5.) Defendant used the account and made payments, charges and incurred a balance thereon. (SS No. 6.) Plaintiff provided Defendant with monthly statements reflecting all charges, payments, minimum payments due, including fees and

¹ The Court refers only to the facts supporting Issue No. 1 regarding breach of contract allegations for simplicity, unless otherwise noted. Those facts likewise apply to Issue No. 2 as set forth in the SS when applicable but are numbered differently.

interest incurred during that billing period. (SS Nos. 7-8.) There is no record of any unresolved disputes on the account or record of any active lawsuits against Plaintiff for unresolved disputes on the account at issue. (SS Nos. 9-10.)

The last payment applied to the account or transaction made by Defendant was on February 1, 2025. (SS No. 11.) No further payments were made by the Defendant and Defendant was in default pursuant to the terms of the Agreement. (SS No. 12.) The balance due on Defendant's account is \$14,660.28, resulting in damages to the Plaintiff in the amount of the same. (SS Nos. 13-14.) In addition to Defendant's failure to dispute any of the facts set forth by Plaintiff, Defendant has admitted all of the facts proffered. (SS No. 15.)

Standard for Summary Judgment

A plaintiff moving for summary judgment meets his or her burden of proof by showing there is no defense to each cause of action by proving each element of the cause of action. (Code Civ. Proc., § 437c(p)(1); see also *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 853 [“summary judgment law in this state no longer requires a plaintiff moving for summary judgment to disprove any defense asserted by defendant as well as prove each element of his own cause of action. . . . All that the plaintiff need do is to ‘prove [] each element of the cause of action’ ”].) Once a plaintiff meets this burden, the burden shifts to defendant “to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c(p)(1).)

Discussion

Plaintiff claims it is entitled to summary judgment against Defendant on the grounds that there is no triable issue of material fact or issue of liability entitling it to summary judgment. (Amended Notice of Motion, p. 2:2-4.) Plaintiff alleges a breach of contract and breach of implied contract against Defendant.

Defendant has failed to oppose the motion or file a separate statement in support of an opposition to the motion. Code of Civil Procedure section 437c, subdivision (b)(3) expressly vests trial courts with discretion to grant motions for summary judgment on the ground that the party opposing summary judgment has failed to submit a separate statement. (Code Civ. Proc., § 437c, subd. (b)(3).)

Code of Civil Procedure section 437c, subd. (b)(3) states, in pertinent part:

The opposition papers shall include a separate statement that responds to each of the material facts contended by the moving party to be undisputed, indicating if the opposing party agrees or disagrees that those facts are undisputed. The statement also shall set forth plainly and concisely any other material facts the opposing party contends are disputed. Each material fact

contended by the opposing party to be disputed shall be followed by a reference to the supporting evidence. **Failure to comply with this requirement of a separate statement may constitute a sufficient ground, in the court's discretion, for granting the motion.**

(Code Civ. Proc., § 437c (b)(3), emphasis added.)

Without a separate statement in opposition to the motion for summary judgment, and after a review of the moving papers, the Court exercises its discretion, concludes that the motion is not deficient on its face, and thus grants the motion for summary judgment.

Notwithstanding the Court's exercise of discretion granting the motion for summary judgment based upon the lack of a separate statement by the opposing party, the Court further finds the moving party has established a prima facie showing of its causes of action with supporting evidence.

The elements of a breach of contract cause of action are: (1) the existence of a contract; (2) the plaintiff's performance or excuse for nonperformance of the contract; (3) defendant's breach; and (4) damage to plaintiff resulting from the breach. (*State Compensation Ins. Fund v. ReadyLink Healthcare, Inc.* (2020) 50 Cal.App.5th 422, 449.)

With respect to the basic elements of a cause of action based on contract, there is no difference between an express and implied contract. “ ‘While an express contract is defined as one, the terms of which are stated in words (Civ. Code, § 1620), an implied contract is an agreement, the existence and terms of which are manifested by conduct (Civ. Code, § 1621).... [B]oth types of contract are identical in that they require a meeting of minds or an agreement [citation].’ ” (*Pac. Bay Recovery, Inc. v. California Physicians' Servs., Inc.* (2017) 12 Cal.App.5th 200, 215, internal citation omitted.) Thus, both express or written contracts and implied in fact contracts are founded upon an ascertained agreement with the substantial difference being the mode of proof by which they are established. (*Ibid.*)

Here, Plaintiff proffers evidence of the agreement for the credit card, that Plaintiff performed its obligation under the terms of the agreement by extending funds to Defendant for various goods, services, and cash advances, that Defendant failed to honor the obligations under the terms of the credit card agreement by failing to pay the sums owed to Plaintiff, and that Plaintiff is owed a sum certain in the amount of \$14,660.28. (SS Nos. 1-14.) All of these facts are admitted by Defendant. (SS No. 15.)

The Court finds that Plaintiff has met its burden establishing each element of its causes of action. (SS Nos. 1-15 as to breach of contract, and SS Nos. 16-30 as to breach of implied contract.) Without controverting evidence from Defendant, the Court grants Plaintiff's motion for summary judgment.

Plaintiff's award of costs is currently premature. (Cal. Rules of Court, rule 3.1700.)

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

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**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/22/26 TIME: 1:30 P.M. DEPT: A CASE NO. CV0008464

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK:

PLAINTIFF: JEFFREY R. BRITTAIN

vs.

DEFENDANT: AMERICAN HONDA
MOTOR CO., INC.

NATURE OF PROCEEDINGS: MOTION – COMPEL ARBITRATION

RULING

The unopposed motion of Defendant American Honda Motor Co., Inc. to Compel Arbitration is **GRANTED**.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for September, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1605267272?pwd=908CbP6TV2mhCAyailnzo6lyz2dKaw.1>

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**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/22/26 TIME: 1:30 P.M. DEPT: A CASE NO. CV0009360

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK:

PLAINTIFF: WARD NICKLE

vs.

DEFENDANT: DATO AUTOMOTIVE
GROUP, INC., DBA NOVATO CHEVROLET,
ET AL

NATURE OF PROCEEDINGS: 1) MOTION – LEAVE
2) MOTION - ATTORNEY’S FEES

RULING

Plaintiff Ward Nickle’s (“Plaintiff”) Motion for Leave to Amend is **GRANTED**. The First Amended Complaint shall be filed within twenty (20) days of the date of this Order.

Defendants Dato Automotive Group, Inc., dba Novato Chevrolet and Nationwide Mutual Insurance Company (collectively “Defendants”) Motion for a Determination that the Matter is Without Merit and for Attorney’s Fees is **DENIED**.

Background

On January 6, 2026, Plaintiff purchased a 2023 Hyundai Kona Electric (“Hyundai”) vehicle online from Novato Chevrolet for \$22,971.89. On January 6, 2026, Plaintiff was provided a Carfax Vehicle History Report which stated the Hyundai had no major accidents or collision history reported to Carfax. Plaintiff took delivery of the Hyundai on January 15, 2026. However, Plaintiff later claimed that there was damage to the front bumper, rear bumper, paint irregularities, adhesive residue, bumper separation, and alignment concerns with the subject vehicle. Defendants assert they offered to repair the vehicle in February of 2026. Plaintiff filed his Complaint and mailed the notice of claims to Defendants on March 9, 2026.

MOTION FOR LEAVE TO AMEND

Request for Judicial Notice

Defendants' Requests for Judicial Notice in Support of Opposition to Motion for Leave to Amend Nos. 1-6 are DENIED. These documents are not relevant at this stage in the proceedings; the merits of the claims are not at issue. (*See Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048.)

Request No. 7 is GRANTED. (Evid. Code, § 452, subd. (d).)

Legal Standard

Under Code of Civil Procedure section 473, subdivision (a)(1), the Court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding. As judicial policy favors resolution of all disputed matters in the same lawsuit, courts liberally permit amendments of the pleadings. (*Nestle v. City of Santa Monica* (1972) 6 Cal.3d 920, 939.) Denial is rarely justified unless opposing parties demonstrate unreasonable delay plus prejudice if the motion is granted. A mere showing of unreasonable delay by the plaintiff without any showing of resulting prejudice to defendants is an insufficient ground to justify denial of the plaintiff's motion. (*Higgins v. Del Faro* (1981) 123 Cal.App.3d 558, 564-565.) Prejudice exists where the amendment would require delaying the trial, resulting loss of critical evidence or added costs of preparation, and an increased burden of discovery, inter alia. (*Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 486-488.)

Generally, arguments attacking the merits of the proposed amendments do not justify denial of the motion. Courts allow the amendment and then let the parties test the legal sufficiency in other appropriate proceedings such as a demurrer. (*See Kittredge Sports Co. v. Superior Court, supra*, 213 Cal.App.3d at p. 1048, and *Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 760.)

A party requesting leave to amend must also comply with California Rules of Court, rule 3.1324. Compliance with the Rules of Court is satisfied by including a copy of the proposed amended pleading, detailing what changes will be made from the previous pleading by stating what allegations are to be deleted or added as compared to the previous pleading including page, paragraph and line number, and attaching a declaration by plaintiff's counsel, as to: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) why the request was not made earlier.

Discussion

The Complaint in this matter was filed on March 9, 2026. It alleged causes of action for 1. Violation of the Consumers Legal Remedies Act, Civil Code § 1750, et seq.; 2. Fraud & Deceit; 3. Negligent Misrepresentation; 4. Violation of the Unfair Competition Law, Business & Professions Code § 17200, et seq.; and 5. Violation of Vehicle Code § 11711.

On July 14, 2026, Plaintiff filed this Motion for Leave to Amend. Accordingly to Plaintiff, at the time the Complaint was filed, Plaintiff still had the 90-day temporary registration and believed the registration and title work was being done by Novato Chevrolet. After the action commenced, the temporary registration expired and it became clear that the registration and title work was not completed by Novato Chevrolet which gave rise to new claims and theories of liability against Novato Chevrolet.

The proposed Amended Complaint states causes of action for 1. Violation of the Consumers Legal Remedies Act, Civil Code § 1750, et seq.; 2. Breach of Contract; 3. Civil Theft – Violation of Penal Code § 496; 4. Fraud & Deceit; 5. Negligent Misrepresentation; 6. Violation of Vehicle Code § 5753; 7. Violation of the Unfair Competition Law, Business & Professions Code § 17200, et seq.; and 8. Violation of Vehicle Code § 11711.

In Opposition, Defendant argues Plaintiff failed to comply with the mandatory 30-day pre-filing notice requirements by sending notice to Defendants on March 9, 2026, the same day Plaintiff filed his Complaint for damages. Defendants argue that Plaintiff's First Cause of Action for violation of the Consumer Legal Remedies Act ("CLRA") is fatally defective due to this notice issue. Since every other Cause of Action in the original Complaint "incorporates herein each and every allegation set forth above," Defendants argue that this defect permeates the entire Complaint and requires dismissal of the Complaint with prejudice.

This Court disagrees for the reasons set forth below. (See *Morgan v. AT&T Wireless Servs., Inc.* (2009) 177 Cal.App.4th 1235, 1261 [filing of amended complaint after notice period expired can cure defect].)

Moreover, this is a merits argument, as is the attack on the punitive damage allegations. The merits are not properly considered on Motion for Leave to Amend. (*Kittredge Sports Co. v. Superior Court, supra*, 213 Cal.App.3d at p. 1048.)

Finally the arguments that the amended pleading is a sham pleading or violates the rules regarding truthful pleadings are not well taken. There has been no showing of undue delay on Plaintiff's part or prejudice to Defendants if amendment is permitted.

The Motion for Leave to Amend is GRANTED.

**MOTION FOR A DETERMINATION THAT ACTION IS WITHOUT MERIT AND
ATTORNEY'S FEES**

Legal Standard

Pursuant to Civil Code section 1781, subdivision (c), "If notice of the time and place of the hearing is served upon the other parties at least 10 days prior thereto, the court shall hold a hearing, upon motion of any party to the action which is supported by affidavit of any person or persons having knowledge of the facts, to determine if any of the following apply to the action: (1) A class action pursuant to subdivision (b) is proper; (2) Published notice pursuant to subdivision (d) is necessary to adjudicate the claims of the class; (3) The action is without merit or there is no defense to the action."

No-merit determinations under Civil Code section 1781 provide a means of resolving CLRA actions prior to trial. (*Consumer Advocs. v. Echostar Satellite Corp.* (2003) 113 Cal.App.4th 1351, 1359. Internal citations omitted.) In practice, courts apply the summary judgment and adjudication standards to motions for no-merit determinations. (*Smith v. Wells Fargo Bank, N.A.* (2005) 135 Cal.App.4th 1463, 1474.)

Civil Code section 1780, subdivision (e) states, in relevant part, that "Reasonable attorney's fees may be awarded to a prevailing defendant upon a finding by the court that the plaintiff's prosecution of the action was not in good faith."

Discussion

Here, Defendants seek a no-merit determination on the grounds that Plaintiff's Complaint is fatally defective because Plaintiff failed to give the requisite notice under Civil Code section 1782, subdivision (a) prior to filing the lawsuit.

Civil Code section 1782, subdivision (a) provides that thirty days or more prior to the commencement of an action for damages pursuant to this title, the consumer shall (1) notify the defendant of the particular alleged violations of section 1770, and (2) demand that the defendant correct, repair, replace, or otherwise rectify the goods or services at issue. The notice must be in writing and sent by certified or registered mail, return receipt requested. Section 1782, subdivision (b) further provides that "no action for damages may be maintained under Section 1780 if an appropriate correction, repair, replacement, or other remedy is given, or agreed to be given within a reasonable time, to the consumer within 30 days after receipt of the notice."

While section 1782, subdivision (d) expressly exempts injunctive relief from the notice requirement, any action for "damages" requires the notice.

The purpose of the notice requirement is to give the manufacturer or vendor sufficient notice of alleged defects to permit appropriate corrections or replacements, and to facilitate pre-complaint settlements of consumer actions wherever possible. (*Outboard Marine Corp. v. Superior Ct.* (1975) 52 Cal.App.3d 30, superseded by statute on another ground, as stated in *Flores v. Southcoast Automotive Liquidators, Inc.* (2017) 17 Cal.App.5th 841, 851.)

In *DeNike v. Mathew Enter., Inc.* (2022) 76 Cal.App.5th 371, the court held that a claim for restitution under the CLRA constitutes an action for damages within the meaning of section 1782. Plaintiff argues that the Complaint does not seek damages under the CLRA, however the prayer seeks restitution and does not limit that request by cause of action.

However, even if Defendants are correct that notice was required, the failure to allow the 30-day period to expire before filing does **not** require dismissal with prejudice. In *Morgan v. AT&T Wireless Servs., Inc., supra*, 177 Cal.App.4th 1235, the court held that “a dismissal with prejudice of a damages claim filed without the requisite notice is not required to satisfy this purpose. Instead, the claim must simply be dismissed until 30 days or more after the plaintiff complies with the notice requirements.” The *Morgan* court rejected federal district court decisions that had treated the notice requirement as requiring dismissal with prejudice, finding that those decisions failed to properly take into account the purpose of the notice requirement.

The *Morgan* holding is consistent with the CLRA’s statutory structure. Section 1782, subdivision (d) itself contemplates that a plaintiff may file a complaint for injunctive relief without any notice and then send the required notice and amend the complaint to add damages claims after 30 days’ notice period expires. This demonstrates that the Legislature did not intend the notice requirement to be a jurisdictional bar to suit, but rather a procedural prerequisite that can be satisfied during the pendency of litigation.

Where a plaintiff files suit within the 30-day period before the defendant has responded, defendant’s subsequent appropriate correction offer negates the plaintiff’s ability to maintain an action for damages under the CLRA. (*Benson v. S. California Auto Sales, Inc.* (2015) 239 Cal.App.4th 1198.) Here, Defendants have not provided any evidence of a subsequent appropriate correction offer after receipt of the March 9, 2026, notice/filing of the Complaint.

Since the 30 day notice period has long since expired and the Court has granted Plaintiff’s Motion for Leave to Amend, the amendment will cure the notice defect identified by Defendants. Defendants have failed to show that Plaintiff’s prosecution of the action is not in good faith.

For these reasons, the Motion for a Determination that the Matter is Without Merit and for Attorney’s Fees is DENIED.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for September, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1605267272?pwd=908CbP6TV2mhCAyailnzo6lyz2dKaw.1>

Meeting ID: 160 526 7272

Passcode: 026935

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>